

Chhattisgarh State Electricity Regulatory Commission
Irrigation Colony, Shanti Nagar, Raipur (C.G.) – 492001

Raipur, Dated .

NOTIFICATION

No. 106/CSERC/2023 - In exercise of powers vested under Section 42, 61, 66, 86 read with Section 181 of the Electricity Act 2003 (36 of 2003) and all other powers enabling it in this behalf, the Chhattisgarh State Electricity Regulatory Commission (the Commission) made Chhattisgarh State Electricity Regulatory Commission (Grid Interactive Distributed Renewable Energy Sources) Regulations, 2019 (henceforth, CSERC DRE Regulations 2019 or the Principal Regulations) and its first amendment for specifying the terms and conditions for distributed solar power projects in the State.

In pursuance of the Principal Regulations and its subsequent amendment, the Commission hereby makes the following regulations to amend the Principal Regulations.

1. Short Title and Commencement

- 1.1 These Regulations shall be called Chhattisgarh State Electricity Regulatory Commission (Grid Interactive Distributed Renewable Energy Sources) (Second Amendment) Regulations, 2023.
- 1.2 These Regulations shall come into force from September 01, 2023.

2. New definition c(a) for regulation 2: Definitions & Interpretations

New definition c)(a) shall be added after definition 2.1(c) of the Principal regulations, namely:-

c)(a) “Banking Cycle” will be same as the financial year.

3. New definition h(a) for regulation 2: Definitions & Interpretations

New definition h)(a) shall be added after definition 2.1(h) of the Principal regulations, namely:-

h)(a) “Green energy” means the electrical energy from renewable sources of energy including hydro and storage (if the storage uses renewable energy) or any other technology as may be notified by the Government of India from time to time and shall also include any mechanism that utilises green energy to replace fossil fuels including production of green hydrogen or green ammonia as per provision of clause G of sub-rule (2) of rule 4 of Green Energy Open Access Rules, 2022.

4. New Sub regulation 7.3 for regulation 7

New sub regulation 7.3 shall be added for regulation 7 of the Principal regulations, namely:-

- 7.3 The distribution licensee shall give green certificate on yearly basis to the consumers, captive users and other distribution licensees for the green energy supplied by the licensee to consumers, captive users and other distribution licensees respectively on their request beyond the renewable purchase obligation of the respective entities.

5. New Sub regulation 7.4 for regulation 7

New sub regulation 7.4 shall be added for regulation 7 of the Principal regulations, namely:-

7.4 Any consumer having contract demand or sanctioned load of 100 kW or more either through single connection or through multiple connections aggregating 100 kW or more located in same electricity division of a distribution licensee, except for captive user(s), whether obligated or not may elect to generate, purchase and consume renewable energy as per their requirements by requisition from distribution licensee.

Notwithstanding anything contained in any code or regulations framed under the Electricity Act 2003, solar generating plants of installed capacity upto 500 kW shall be exempted from requirements of dedicated feeders and installation of RTU, main and check ABT meter. Also, all such solar generating plants coming under the KUSUM Scheme can install upto 2000 kW at 11 KV supply voltage and such solar plants shall be exempted from requirements of dedicated feeder connectivity and installation of RTU, main and check ABT meter.

- (a) Any consumer as specified in para 7.4 above except for captive user, whether obligated or not may elect to purchase green energy either upto a certain percentage of the consumption or its entire consumption and they may place a requisition for this with their distribution licensee, which shall procure such quantity of green energy and supply it and the consumer shall have the flexibility to give separate requisition for solar and non-solar;
- (b) The consumer as specified in para 7.4 above except for captive user, may purchase on a voluntary basis, more renewable energy, than he is obligated to do and for ease of implementation, this may be in steps of twenty five per cent and going upto hundred per cent;
- (c) The tariff for the green energy shall be determined separately by the Commission, which shall comprise of the average pooled power purchase cost of the renewable energy, cross-subsidy charges if any, and service charges covering the prudent cost of the distribution licensee for providing the green energy;
- (d) Any requisition for green energy from a distribution licensee shall be for a minimum period of one year;
- (e) The quantum of green energy shall be pre-specified for at least one year;
- (f) The green energy purchased from distribution licensee or from renewable energy sources other than distribution licensee in excess of renewable purchase obligation of obligated entity in any financial year shall be considered for meeting the RPO for the next financial year by the obligated entity.

6. Substitution of first proviso of sub regulation a) of 18.2 of regulation 18

For first proviso of sub regulation a) of regulation 18.2 the CSERC DRE Regulations (First Amendment) 2021, the following sub regulation shall be substituted, namely:-

Provided that the minimum size of distributed renewable energy system that has been set up upto 31st August 2023 under this arrangement shall be 500 kW. Further, maximum size of such remotely located distributed renewable energy system, seeking wheeling/transmission of energy to its captive load or open access consumers, which has been set up under this arrangement shall be two and half times (2.5 times) of the contracted demand or desired open access quantum from the licensee, as the case may be.

Further, that the minimum size of distributed renewable energy system for upcoming IDRES projects (other than IDRES projects for first 500 MW or projects which have achieved COD by 27.12.2023, whichever is earlier) under this arrangement shall be 100 kW either through single connection or through multiple connections aggregating 100 kW or more in same electricity division of distribution licensee. Also, there shall not be any capacity limit for installation of distributed renewable energy system, seeking wheeling/transmission of energy for its captive use or open access consumers.

7. Substitution of regulation 21 of the first amendment regulation

For regulation 21 of the CSERC DRE Regulations (First Amendment) 2021, the following sub regulation shall be substituted, namely:-

21. Banking and Charges to be levied for Open Access

	Charges	IDRES projects for first 500 MW or projects which have achieved COD by 27.12.2023, whichever is earlier.	Upcoming IDRES projects (other than IDRES projects for first 500 MW or projects which have achieved COD by 27.12.2023, whichever is earlier.)
21.1	Transmission Charges	Nil for the entire useful life of the IDRES Projects.	Transmission charges shall be as specified in the tariff order applicable from time to time.
21.2	Wheeling Charges	Nil for the entire useful life of the IDRES Projects.	Wheeling charges shall be as specified in the tariff order applicable from time to time.
21.3	Cross Subsidy Surcharges	Nil for the entire useful life of the IDRES Projects.	As specified in the tariff order applicable from time to time. Green energy open access consumer purchasing green energy, from a generating plant using renewable energy sources shall not be increased, during 12 years from date of operating of generating plant using renewable energy sources.
21.4	Fees and Charges of SLDC	Nil for the entire useful life of the IDRES Projects.	As specified in the tariff order applicable from time to time.
21.5	Standby Charges	As specified in the applicable tariff order.	125% of the energy charges applicable to the consumer tariff category as specified in the tariff order.
21.6	Banking and Banking Charges	i. Banking facility will be available for useful life period of the project. ii. Banking of 100% of energy injection, after netting the generation with in-house auxiliary requirement, shall be permitted for all captive and open access consumption.	i. Banking facility will be available for useful life period of the project. ii. Banking shall be permitted at least on monthly basis on payment of charges to compensate additional cost for all captive and open access consumption. Permitted quantum of banked energy by the green energy open access consumers shall be at least 30% of the total monthly consumption of electricity from the distribution licensee by the consumers. Provided that the credit for the banked energy shall not be permitted to be carried forward to subsequent banking

	Charges	IDRES projects for first 500 MW or projects which have achieved COD by 27.12.2023, whichever is earlier.	Upcoming IDRES projects (other than IDRES projects for first 500 MW or projects which have achieved COD by 27.12.2023, whichever is earlier.)
		iii. Banking charges @ 2% of banked energy shall be payable in kind. The banking year shall be from April to March. iv. Banked units redeemed during normal period (5 am to 6 pm or as specified in the applicable Tariff Order) and off-peak load period (11 pm to 5 am next day or as specified in the applicable Tariff Order) shall not have any withdrawal charges. Banked energy redeemed during evening peak load period (6 pm to 11 pm or as specified in the applicable Tariff Order) shall attract peak withdrawal charges in kind, which shall be 30% of energy drawn during the peak load hrs. v. For captive use/ third party sale, energy injected into the grid from the date of synchronization till the open access approval date will be considered as deemed energy banked. For the purpose of this provision, the date of synchronization shall be considered as date of commercial operation (COD). vi. The unutilized banked energy/surplus energy, if any, at the end of financial year shall be purchased by distribution licensee at lowest rooftop solar tariff discovered through competitive bidding undertaken by distribution licensee in the last financial year. If such tariff is not available, lowest tariff through competitive bidding undertaken by SECI in last	cycles and shall be adjusted during the same banking cycle. iii. Banking charges @ 2% of banked energy shall be payable in kind. The banking year shall be from April to March. iv. Banked units redeemed during normal period (5 am to 6 pm or as specified in the applicable Tariff Order) and off-peak load period (11 pm to 5 am next day or as specified in the applicable Tariff Order) shall not have any withdrawal charges. Banked energy redeemed during evening peak load period (6 pm to 11 pm or as specified in the applicable Tariff Order) shall attract peak withdrawal charges in kind, which shall be 30% of energy drawn during the peak load hrs. v. For captive use/ third party sale, energy injected into the grid from the date of synchronization till the open access approval date will be considered as deemed energy banked. For the purpose of this provision, the date of synchronization shall be considered as date of commercial operation (COD). vi. The unutilized banked energy/surplus energy, if any, at the end of each banking cycle shall be considered lapsed and energy generating station shall be entitled to get renewable energy certificates to the extent of lapsed energy.

	Charges	IDRES projects for first 500 MW or projects which have achieved COD by 27.12.2023, whichever is earlier.	Upcoming IDRES projects (other than IDRES projects for first 500 MW or projects which have achieved COD by 27.12.2023, whichever is earlier.)
		financial year shall be considered. vii. For Sale to distribution licensee, energy injected into the grid from date of synchronization to Commercial Operation Date (COD) will be purchased by the distribution licensee at the first year tariff of the project, as per the provisions of the PPA with distribution licensee.	vii. For Sale to distribution licensee, energy injected into the grid from date of synchronization to Commercial Operation Date (COD) will be purchased by the distribution licensee at the first year tariff of the project, as per the provisions of the PPA with distribution licensee.
21.7	Deviation Settlement Charges	i. All solar power projects shall be awarded must-run status i.e., injection from the solar power projects shall be considered as deemed to be scheduled. ii. Notwithstanding anything contained in any regulation framed under the Electricity Act 2003, all IDRES projects shall not be subjected to scheduling and deviation settlement for commercial purpose. However, for grid operations scheduling shall be applicable.	i. All solar power projects shall be awarded must-run status i.e., injection from the solar power projects shall be considered as deemed to be scheduled. ii. Notwithstanding anything contained in any regulation framed under the Electricity Act 2003, all IDRES projects shall not be subjected to scheduling and deviation settlement for commercial purpose. However, for grid operations scheduling shall be applicable.
21.8	Additional Surcharge	Nil	It will not be applicable for green energy open access consumers if fixed charges are being paid by such a consumer.

21.9 CSPDCL will be the nodal agency to monitor and display of solar capacity addition. This information will be displayed in CSPDCL in its portal. Status of capacity addition of solar projects will be updated fortnightly.

21.10 These provisions for IDRES projects for first 500 MW or projects which have achieved COD by 27.12.2023, whichever is earlier, shall be applicable for billing cycle starting September 01, 2023.

21.11 Order dated 18.04.2022 issued in P No. 61 of 2020 shall only be applicable for IDRES projects for first 500 MW or projects which have achieved COD by 27.12.2023, whichever is earlier.

By the Order of the Commission

(S.P. Shukla)
Secretary